

GOVERNOR CM STATE COUNCIL

RESPONSIBLE STATE EXECUTIVE: LEGAL → APPOINTMENT, CONDITIONS, IMMUNITY AND → COMPLETE POWER CLASSIFICATION AND → AID AND ADVICE, DISCRETION → CASE-LAW LADDER: FROM ADVICE → GOVERNMENT FORMATION, FLOOR TEST

Read the thick cyan rail from Stage 00 to the final core synthesis. Each card uses a concept-appropriate structure; the grey E card is optional enrichment only and never repairs missing core content.

PRIMARY CORE FLOW SUBORDINATE EXTRA APPROVAL / REVIEW

Approval: FALSE • Pending user review • source generation g9 and all prior artifacts unchanged

CORE BEFORE EXTRA • prior artefacts unchanged • exact same master drives poster and tiles

00

STAGE 00 RESPONSIBLE STATE EXECUTIVE: LEGAL FORM AND DEMOCRATIC COMMAND

RESPONSIBLE STATE EXECUTIVE LEGAL FORM AND DEMOCRATIC COMMAND ARTICLES 153-167 LEGISLATIVE ASSEMBLY CM + COUNCIL REAL EXECUTIVE CONSTITUTIONAL STATE HEAD FORMAL ACTS AND CONTINUITY

ARTICLES 153-167

People → Legislative Assembly → confidence → CM + Council → real executive

Governor → constitutional State head → formal acts and continuity

ARTICLE MAP

CONSTITUTIONAL BASIS / ARTICLE

- ARTICLES 153-167
- People → Legislative Assembly → confidence → CM + Council → real executive
- Governor → constitutional State head → formal acts and continuity
- ARTICLE MAP
- 153 office

POWER / PROCEDURE

- 154 power
- 155 appointment
- 156 pleasure
- 157-159 conditions/oath
- 161 clemency

CHECK / LIMIT

- 163 advice/discretion
- 164 ministry
- 165 AG
- 166 business
- 167 CM duties

FEDERAL / RIGHTS IMPACT

- CORE RULE
- Union appointment creates a federal link, not authority to govern as a Central party agent.
- MUST REMEMBER: Teach Articles 153-167 office by office, then separate aid and advice, express or
- necessarily implied discretion, government formation, floor tests, Article 356 reporting, assent, ordinance and clemency.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: MUST REMEMBER: Teach Articles 153-167 office by office, then separate aid and advice, express or necessarily implied discretion, government formation, floor tests, Article 356 reporting, assent, ordinance and clemency.

01

STAGE 01 APPOINTMENT, CONDITIONS, IMMUNITY AND PLEASURE TENURE

APPOINTMENT, CONDITIONS, IMMUNITY AND PLEASURE TENURE PRESIDENT APPOINTS BY WARRANT CITIZEN + 35 ARTICLE 159 OATH NO LEGISLATIVE SEAT OR OTHER OFFICE OF PROFIT; EMOLUMENTS COMMON GOVERNOR ARTICLE 153 PROVISO ALLOWS ONE PERSON FOR MULTIPLE STATES.

ARTICLE 156 FIVE-YEAR OUTER TERM + PRESIDENT PLEASURE +

ENTRY: President appoints by warrant → citizen + 35 → Article 159 oath

CONDITIONS: no legislative seat or other office of profit; emoluments protected.

COMMON GOVERNOR: Article 153 proviso allows one person for multiple States.

ARTICLE 156 five-year outer term + President pleasure + resignation + holdover until successor.

B.P. Singhal (2010): no arbitrary, capricious, unreasonable or mala fide removal

CONSTITUTIONAL BASIS / ARTICLE

- ENTRY: President appoints by warrant → citizen + 35 → Article 159 oath
- CONDITIONS: no legislative seat or other office of profit; emoluments protected.

POWER / PROCEDURE

- COMMON GOVERNOR: Article 153 proviso allows one person for multiple States.
- ARTICLE 156 five-year outer term + President pleasure + resignation + holdover until successor.

CHECK / LIMIT

- B.P. Singhal (2010): no arbitrary, capricious, unreasonable or mala fide removal
- no guaranteed five-year lease and no routine duty to disclose reasons.

FEDERAL / RIGHTS IMPACT

- ARTICLE 361: personal temporary immunity; underlying government action remains reviewable.
- ENTRY: President appoints by warrant → citizen + 35 → Article 159 oath

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: ARTICLE 361: personal temporary immunity; underlying government action remains reviewable.

02

STAGE 02 COMPLETE POWER CLASSIFICATION AND SOURCE CONTROL

COMPLETE POWER CLASSIFICATION AND SOURCE CONTROL APPOINT CM; MINISTERS ON CM ADVICE; AG, SEC, SPSC 168, 171, 174-176, 200 AND 213. 202 BUDGET, 203 GRANTS, 207 MONEY/FINANCIAL BILLS, 243-I SFC. ARTICLE 161 WITHIN STATE EXECUTIVE FIELD; ADVICE-BOUND AND REVIEWABLE.

ARTICLE 356 REPORT; CONSTITUTIONALLY SPECIFIED RESPONSIBILITIES.

UNIVERSITY CHANCELLOR ONLY WHERE STATE LAW PROVIDES.

GOVERNOR DOES NOT APPOINT HC JUDGES OR NOMINATE ASSEMBLY

CONSTITUTIONAL BASIS / ARTICLE

EXECUTIVE: appoint CM; ministers on CM advice; AG, SEC, SPSC and district-judge roles.
LEGISLATIVE: 168, 171, 174-176, 200 and 213.

POWER / PROCEDURE

FINANCIAL: 202 budget, 203 grants, 207 Money/financial Bills, 243-I SFC.
CLEMENCY: Article 161 within State executive field; advice-bound and reviewable.

CHECK / LIMIT

SPECIAL: Article 356 report; constitutionally specified responsibilities.
STATUTORY: university Chancellor only where State law provides.

FEDERAL / RIGHTS IMPACT

TRAPS: Governor does not appoint HC judges or nominate Assembly members.
EXECUTIVE: appoint CM; ministers on CM advice; AG, SEC, SPSC and district-judge roles.

CONSTITUTIONAL BASIS / ARTICLE

- EXECUTIVE: appoint CM; ministers on CM advice; AG, SEC, SPSC and district-judge roles.
- LEGISLATIVE: 168, 171, 174-176, 200 and 213.

POWER / PROCEDURE

- FINANCIAL: 202 budget, 203 grants, 207 Money/financial Bills, 243-I SFC.
- CLEMENCY: Article 161 within State executive field; advice-bound and reviewable.

CHECK / LIMIT

- SPECIAL: Article 356 report; constitutionally specified responsibilities.
- STATUTORY: university Chancellor only where State law provides.

FEDERAL / RIGHTS IMPACT

- TRAPS: Governor does not appoint HC judges or nominate Assembly members.
- EXECUTIVE: appoint CM; ministers on CM advice; AG, SEC, SPSC and district-judge roles.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: TRAPS: Governor does not appoint HC judges or nominate Assembly members.

02

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CONSTITUTIONAL BASIS / ARTICLE	POWER / PROCEDURE	CHECK / LIMIT	FEDERAL / RIGHTS IMPACT
EXECUTIVE: appoint CM; ministers on CM advice; AG, SEC, SPSC and district-judge roles. LEGISLATIVE: 168, 171, 174-176, 200 and 213.	FINANCIAL: 202 budget, 203 grants, 207 Money/financial Bills, 243-I SFC. CLEMENCY: Article 161 within State executive field; advice-bound and reviewable.	SPECIAL: Article 356 report; constitutionally specified responsibilities. STATUTORY: university Chancellor only where State law provides.	TRAPS: Governor does not appoint HC judges or nominate Assembly members. EXECUTIVE: appoint CM; ministers on CM advice; AG, SEC, SPSC and district-judge roles.
CONSTITUTIONAL BASIS / ARTICLE - EXECUTIVE: appoint CM; ministers on CM advice; AG, SEC, SPSC and district-judge roles. - LEGISLATIVE: 168, 171, 174-176, 200 and 213.	POWER / PROCEDURE - FINANCIAL: 202 budget, 203 grants, 207 Money/financial Bills, 243-I SFC. - CLEMENCY: Article 161 within State executive field; advice-bound and reviewable.	CHECK / LIMIT - SPECIAL: Article 356 report; constitutionally specified responsibilities. - STATUTORY: university Chancellor only where State law provides.	FEDERAL / RIGHTS IMPACT - TRAPS: Governor does not appoint HC judges or nominate Assembly members. - EXECUTIVE: appoint CM; ministers on CM advice; AG, SEC, SPSC and district-judge roles.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: TRAPS: Governor does not appoint HC judges or nominate Assembly members.

03

STAGE 03 AID AND ADVICE, DISCRETION AND SPECIAL RESPONSIBILITIES

AID AND ADVICE, DISCRETION AND SPECIAL RESPONSIBILITIES

SHAMSHER SINGH (1974)

CM-LED COUNCIL ADVICE CONTROLS.

EXPRESS TEXT OR NECESSARY IMPLICATION; DISCRETION REMAINS PURPOSE-BOUND.

BOUNDED FIELDS HUNG-HOUSE APPOINTMENT

OBJECTIVE FLOOR-TEST DOUBT

ARTICLE 200 RESERVATION

ARTICLE 356 REPORT

CONSTITUTIONAL BASIS / ARTICLE	POWER / PROCEDURE	CHECK / LIMIT	FEDERAL / RIGHTS IMPACT
- DEFAULT → Shamsher Singh (1974): CM-led Council advice controls. - EXCEPTION → express text or necessary implication; discretion remains purpose-bound. - BOUNDED FIELDS hung-House appointment	- objective floor-test doubt - Article 200 reservation - Article 356 report	- UT additional charge - constitutionally specified responsibilities. - SPECIAL TEXTS	- Article 371A(1)(b): Nagaland law and order 371H(a): Arunachal law and order individual judgment after consulting Council; Sixth Schedule assigns specified functions. - LIMIT: exceptional State texts do not create general discretion for every Governor.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: LIMIT: exceptional State texts do not create general discretion for every Governor.

04

STAGE 04 CASE-LAW LADDER: FROM ADVICE TO OBJECTIVE MATERIAL

CASE-LAW LADDER

FROM ADVICE TO OBJECTIVE MATERIAL

SHAMSHER SINGH (1974)

CONSTITUTIONAL HEAD; ADVICE IS NORM

S.R. BOMMAI (1994)

ARTICLE 356 REVIEW; HOUSE FLOOR ORDINARILY TESTS MAJORITY

RAMESHWAR PRASAD (2006)

SPECULATIVE HORSE-TRADING CANNOT JUSTIFY DISSOLUTION

Shamsher Singh (1974) → constitutional head; advice is norm S.R. Bommai (1994) → Article 356 review; House floor ordinarily tests majority Rameshwar Prasad (2006) → speculative horse-trading cannot justify dissolution B.P. Singhal (2010) → pleasure survives; arbitrary removal does not Nabam Rebia (2016) → Articles 174-175 normally advice-bound				
CONSTITUTIONAL BASIS / ARTICLE - Shamsher Singh (1974) → constitutional head; advice is norm - S.R. Bommai (1994) → Article 356 review; House floor ordinarily tests majority		POWER / PROCEDURE - Rameshwar Prasad (2006) → speculative horse-trading cannot justify dissolution - B.P. Singhal (2010) → pleasure survives; arbitrary removal does not	CHECK / LIMIT - Nabam Rebia (2016) → Articles 174-175 normally advice-bound - Subhash Desai (2023) → objective material; no intra-party arbitration by floor test	FEDERAL / RIGHTS IMPACT - CURRENT: referred Nabam Rebia (2016) Speaker-removal issue remains unresolved at 28 Aug 2026. - Shamsher Singh (1974) → constitutional head; advice is norm

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: CURRENT: referred Nabam Rebia (2016) Speaker-removal issue remains unresolved at 28 Aug 2026.

05

STAGE 05 GOVERNMENT FORMATION, FLOOR TEST, DISMISSAL AND DISSOLUTION

GOVERNMENT FORMATION, FLOOR TEST, DISMISSAL AND DISSOLUTION

CLEAR MAJORITY

APPOINT RECOGNISED LEADER

ORDINARY RESPONSIBLE GOVERNMENT.

HUNG HOUSE

INVITE CREDIBLE CONFIDENCE CLAIMANT

EARLY FLOOR TEST

NO SECRET COUNT.

CLEAR MAJORITY → appoint recognised leader → ordinary responsible government. HUNG HOUSE → invite credible confidence claimant → early floor test → no secret count. LATER DOUBT → objective material → prompt floor test in Assembly. AFTER TEST confidence retained → ministry continues confidence lost → resignation/dismissal → test alternative → CARETAKER → continuity with restraint, not a fresh policy mandate.				
CONSTITUTIONAL BASIS / ARTICLE - CLEAR MAJORITY → appoint recognised leader → ordinary responsible government. - HUNG HOUSE → invite credible confidence claimant → early floor test → no		POWER / PROCEDURE - AFTER TEST confidence retained → ministry continues confidence lost → resignation/dismissal → test alternative → dissolution only if needed. - CARETAKER → continuity with restraint, not a fresh policy mandate.		CHECK / LIMIT - Rameshwar Prasad (2006): anticipated misconduct cannot replace House process. - CLOSE DISTINCTION: Apply Shamsher Singh (1974), S.R. Bommai (1994),
FEDERAL / RIGHTS IMPACT Article 200 discretion does not create general gubernatorial discretion.				

- **CURRENT:** referred Nabam Rebia (2016) Speaker-removal issue remains unresolved at 28 Aug 2026.
- Shamsher Singh (1974) → constitutional head; advice is norm

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: CURRENT: referred Nabam Rebia (2016) Speaker-removal issue remains unresolved at 28 Aug 2026.

NO SECRET COUNT.

- ▶ **CARETAKER** → continuity with restraint, not a fresh policy mandate.

FEDERAL / RIGHTS IMPACT

- Article 200 discretion does not create general gubernatorial discretion.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: B.P. Singhal, Nabam Rebia (2016) and Subhash Desai (2023) only for their stated propositions. Article 200 discretion does not create general gubernatorial discretion.

CONSTITUTIONAL PURPOSE

constitutional purpose

FEDERAL / RIGHTS IMPACT

- mala fides

MECHANISM / VERDICT — TRAP: Governor recommends/reports; the Governor does not proclaim President's Rule.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Governor recommends/reports; the Governor does not proclaim President's Rule.

AFTER REPASSAGE GOVERNOR CANNOT RETURN AGAIN; EXACT REMAINING ROUTE

DIRECT RETURN OF NON-MONEY BILL THROUGH GOVERNOR REPASSAGE DOES

FEDERAL / RIGHTS IMPACT

- In re Assent, Withholding or Reservation of Bills (2025): advisory
- no rigid timelines or automatic deemed assent
- prolonged unexplained inaction remains reviewable.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: In re Assent, Withholding or Reservation of Bills (2025): advisory; no rigid timelines or automatic deemed assent; prolonged unexplained inaction remains reviewable.

D.C. WADHWA (1986)

07

STAGE 07

ARTICLES 200-201 AND THE 2025 ASSENT CONTROL

ARTICLES 200-201 AND THE 2025 ASSENT CONTROLARTICLE 200 ASSENTRETURN NON-MONEY BILL ONCERESERVE FOR PRESIDENT MANDATORY RESERVATIONBILL ENDANGERS HIGH COURT CONSTITUTIONAL POWERS.AFTER REPASSAGE GOVERNOR CANNOT RETURN AGAIN; EXACT REMAINING ROUTE

ARTICLE 201DIRECT RETURN OF NON-MONEY BILL THROUGH GOVERNOR REPASSAGE DOES

CONSTITUTIONAL BASIS / ARTICLE

- ARTICLE 200 assent
- return non-Money Bill once
- reserve for President mandatory reservation: Bill endangers High Court constitutional powers.

POWER / PROCEDURE

- After repassage Governor cannot return again; exact remaining route is text-specific.
- ARTICLE 201
- President: assent

CHECK / LIMIT

- direct return of non-Money Bill through Governor repassage does not compel presidential assent.
- 2025 CONTROL
- State of Tamil Nadu v. Governor of Tamil Nadu (2025): facts-specific timelines/deemed assent

FEDERAL / RIGHTS IMPACT

- In re Assent, Withholding or Reservation of Bills (2025): advisory
- no rigid timelines or automatic deemed assent
- prolonged unexplained inaction remains reviewable.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: In re Assent, Withholding or Reservation of Bills (2025): advisory; no rigid timelines or automatic deemed assent; prolonged unexplained inaction remains reviewable.

08

STAGE 08

ORDINANCE POWER AND CLEMENCY COMPARISON

ORDINANCE POWER AND CLEMENCY COMPARISONARTICLE 213 REQUIRED HOUSE(S) NOT IN SESSION + IMMEDIATEORDINANCE WITH ACT-LIKE FORCEMUST BE LAIDEXPIRES SIX WEEKS AFTER REASSEMBLY UNLESS APPROVED EARLIER.D.C. WADHWA (1986)

SERIAL RE-PROMULGATION IS FRAUD ON CONSTITUTION.KRISHNA KUMAR SINGH (2017)

CONSTITUTIONAL BASIS / ARTICLE	POWER / PROCEDURE	CHECK / LIMIT	FEDERAL / RIGHTS IMPACT
ARTICLE 213 required House(s) not in session + immediate necessity → ordinance with Act-like force	D.C. Wadhwa (1986): serial re-promulgation is fraud on Constitution.	ARTICLE 161 V ARTICLE 72	President: court-martial, Union-field offences and every death sentence, including pardon.
must be laid → expires six weeks after reassembly unless approved earlier.	Krishna Kumar Singh (2017): laying mandatory; satisfaction reviewable; no routine survival.	Governor: six forms generally; no death-sentence pardon; may suspend, remit or commute death in State field; no court-martial.	Both ordinarily act on advice and remain reviewable for recognised defects.

CONSTITUTIONAL BASIS / ARTICLE

- ARTICLE 213 required House(s) not in session + immediate necessity → ordinance with Act-like force
- must be laid → expires six weeks after reassembly unless approved earlier.

POWER / PROCEDURE

- D.C. Wadhwa (1986): serial re-promulgation is fraud on Constitution.
- Krishna Kumar Singh (2017): laying mandatory; satisfaction reviewable; no routine survival.

CHECK / LIMIT

- ARTICLE 161 V ARTICLE 72
- Governor: six forms generally; no death-sentence pardon; may suspend, remit or commute death in State field; no court-martial.

FEDERAL / RIGHTS IMPACT

- President: court-martial, Union-field offences and every death sentence, including pardon.
- Both ordinarily act on advice and remain reviewable for recognised defects.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Both ordinarily act on advice and remain reviewable for recognised defects.

09

STAGE 09

CHIEF MINISTER, ARTICLE 167 AND STATE COUNCIL

CHIEF MINISTER, ARTICLE 167 AND STATE COUNCILGOVERNOR APPOINTS CMCM PROVES ASSEMBLY CONFIDENCECM SELECTS MINISTERSALLOCATES PORTFOLIOSCOORDINATES POLICYADVISES GOVERNOR.ARTICLE 167

GOVERNOR APPOINTS CM → CM PROVES ASSEMBLY CONFIDENCE

CM selects ministers → allocates portfolios → coordinates policy → advises Governor. → ARTICLE 167 → communicate Council decisions, furnish information, collectivise decisions. → COUNCIL UNDER ARTICLES 163-164 appoint ministers on CM advice

CONSTITUTIONAL BASIS / ARTICLE	POWER / PROCEDURE	CHECK / LIMIT	FEDERAL / RIGHTS IMPACT
- GOVERNOR APPOINTS CM → CM PROVES ASSEMBLY CONFIDENCE - CM selects ministers → allocates portfolios → coordinates policy → advises Governor.	- ARTICLE 167 → communicate Council decisions, furnish information, collectivise decisions. - COUNCIL UNDER ARTICLES 163-164 appoint ministers on CM advice	- collective responsibility to Assembly individual pleasure is mediated by CM advice and confidence - non-member: maximum six months.	91ST AMENDMENT ministers <=15% of Assembly, minimum 12; defector bar under Article 164(1B). - GOVERNOR APPOINTS CM → CM PROVES ASSEMBLY CONFIDENCE

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: 91ST AMENDMENT ministers <=15% of Assembly, minimum 12; defector bar under Article 164(1B).

10

STAGE 10

TRIBAL MINISTER, ADVOCATE GENERAL, BUSINESS AND COMPARISON

TRIBAL MINISTER, ADVOCATE GENERAL, BUSINESS AND COMPARISONTRIBAL WELFARE MINISTER REQUIRED IN CHHATTISGARH, JHARKHAND, MADHYA PRADESHARTICLE 165ADVOCATE GENERALHC-JUDGE QUALIFICATION; ADVISES STATE GOVERNMENT.ARTICLE 166

AUTHENTICATION AND BUSINESS-ALLOCATION RULES; NOT PERSONAL GOVERNOR POLICY.PRESIDENT V GOVERNOR BOTH CONSTITUTIONAL HEADS

PRESIDENT v GOVERNOR both constitutional heads	Article 74 differs textually from 163
Article 72 wider than 161	Governor reserves State Bills under 200

CONSTITUTIONAL BASIS / ARTICLE

- TRIBAL WELFARE MINISTER required in Chhattisgarh, Jharkhand, Madhya Pradesh and Odisha under Article 164 proviso.
- ARTICLE 165 → Advocate General: HC-judge qualification; advises State government.

POWER / PROCEDURE

- PRESIDENT v GOVERNOR both constitutional heads
- Article 74 differs textually from 163
- Article 72 wider than 161

CHECK / LIMIT

- Governor reserves State Bills under 200
- Governor has State-specific special responsibilities; neither difference creates general discretion.
- CHANCELLOR: statute-specific, not inherent constitutional office.

FEDERAL / RIGHTS IMPACT

- PRESIDENT v GOVERNOR both constitutional heads

GOVERNOR CM STATE COUNCIL • TILE 4/5 • same master rows 6948-10182 of 12498 • continues below

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: 91ST AMENDMENT ministers <=15% of Assembly, minimum 12; defector bar under Article 164(1B).

10

STAGE 10 TRIBAL MINISTER, ADVOCATE GENERAL, BUSINESS AND COMPARISON

TRIBAL MINISTER, ADVOCATE GENERAL, BUSINESS AND COMPARISON

TRIBAL WELFARE MINISTER REQUIRED IN CHHATTISGARH, JHARKHAND, MADHYA PRADESH

ARTICLE 165

ADVOCATE GENERAL

HC-JUDGE QUALIFICATION; ADVISES STATE GOVERNMENT.

ARTICLE 166

AUTHENTICATION AND BUSINESS-ALLOCATION RULES; NOT PERSONAL GOVERNOR POLICY.

PRESIDENT V GOVERNOR BOTH CONSTITUTIONAL HEADS

PRESIDENT v GOVERNOR both constitutional heads

Article 72 wider than 161

Article 74 differs textually from 163

Governor reserves State Bills under 200

CONSTITUTIONAL BASIS / ARTICLE

- TRIBAL WELFARE MINISTER required in Chhattisgarh, Jharkhand, Madhya Pradesh and Odisha under Article 164 proviso.
- ARTICLE 165 → Advocate General: HC-judge qualification; advises State government.
- ARTICLE 166 → authentication and business-allocation rules; not personal Governor policy.

POWER / PROCEDURE

- PRESIDENT v GOVERNOR both constitutional heads
- Article 74 differs textually from 163
- Article 72 wider than 161

CHECK / LIMIT

- Governor reserves State Bills under 200
- Governor has State-specific special responsibilities; neither difference creates general discretion.
- CHANCELLOR: statute-specific, not inherent constitutional office.

FEDERAL / RIGHTS IMPACT

- PRESIDENT v GOVERNOR both constitutional heads

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Governor has State-specific special responsibilities; neither difference creates general discretion.

11

STAGE 11 FEDERAL NEUTRALITY, REFORMS, PYQS AND ANSWER SYNTHESIS

FEDERAL NEUTRALITY, REFORMS, PYQS AND ANSWER SYNTHESIS

FAULT LINE

UNION APPOINTMENT + PLEASURE TENURE + STATE-FACING FORMATION/ASSENT/356 POWERS.

BRIDGE CONSTITUTIONAL CONTINUITY, NEUTRAL INFORMATION, LAWFUL TRANSITION AND EMERGENCY

REFORM ROUTE

EMINENT OUTSIDER, DETACHED POLITICS, CM CONSULTATION

TRANSPARENT SELECTION, TENURE RESTRAINT, REASONED ACTION, HOUSE-CENTRED TESTS

ALL ARE PROPOSALS UNLESS ENACTED.

FAULT LINE

Union appointment + pleasure tenure + State-facing formation/assent/356 powers.

BRIDGE constitutional continuity, neutral information, lawful transition and emergency warning.

REFORM ROUTE

Sarkaria: eminent outsider, detached politics, CM consultation

CONSTITUTIONAL BASIS / ARTICLE

- FAULT LINE
- Union appointment + pleasure tenure + State-facing formation/assent/356 powers.
- BRIDGE constitutional continuity, neutral information, lawful transition and emergency warning.
- REFORM ROUTE
- Sarkaria: eminent outsider, detached politics, CM consultation

POWER / PROCEDURE

- NCRWC/Punchhi: transparent selection, tenure restraint, reasoned action, House-centred tests
- All are proposals unless enacted.
- PRELIMS: elected? NO
- guaranteed five years? NO
- general discretion? NO

CHECK / LIMIT

- Money Bill return? NO
- Chancellor constitutional? NO
- Article 361 = State immunity? NO.
- MAINS SPINE text → advice default → exceptional trigger → case + year → federal risk
- matched reform → neutral constitutional-head conclusion.

FEDERAL / RIGHTS IMPACT

- LEGAL/SOURCE LIMIT: The 20 November 2025 Article 143 opinion gives three Article 200 options, rejects rigid timelines and
- Article 161 gives six forms generally, but no death-sentence pardon; State-field suspension, remission or commutation remains
- court-martial remains outside it.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: LEGAL/SOURCE LIMIT: The 2025 Article 143 opinion rejects rigid assent timelines and deemed assent, retaining limited mandamus for prolonged unexplained inaction. Article 161 gives six forms generally, but no death-sentence pardon; State-field suspension, remission or commutation remains, while court-martial is outside it.

E

EXTRA SUBORDINATE ENRICHMENT — ONLY AFTER THE COMPLETE CORE

OPTIONAL ADVANCED ENRICHMENT

A1. FORMAL VESTING, REAL AUTHORITY AND CONSTITUTIONAL TRUSTEESHIP

A2. THE POLITICAL-INFORMATION PROBLEM

A3. ASSENT AS A SEPARATION-OF-POWERS PROBLEM

A4. ANTI-DEFECTION AND FORMATION CRISES

A5. FEDERAL REFORM

LEGAL RULES VERSUS CONVENTIONS

A6. SOURCE AND FACTUAL-CONTROL NOTE

OPTIONAL DOCTRINE / CASE

- A1. Formal vesting, real authority and constitutional trusteeship
- A2. The political-information problem
- A3. Assent as a separation-of-powers problem
- A4. Anti-defection and formation crises

ADVANCED LIMIT

- A5. Federal reform: legal rules versus conventions
- A6. Source and factual-control note
- [ANALYSIS] The Governor is best described as a constitutional trustee of process, not a rival policy-maker.
- [ANALYSIS] Trusteeship requires fidelity to institutions: Assembly for confidence, political party for internal leadership,

COMPARATIVE NUANCE

- Speaker for Tenth Schedule adjudication, courts for legality and elected ministry for policy.
- [ANALYSIS] A Governor often receives asymmetric claims from parties that benefit from a particular timing.
- [ANALYSIS] The safest institutional response is to minimise private factual adjudication and move the decisive question to the public Assembly floor.
- [LIMIT] A floor test cannot cure every illegality. It does not decide the validity of a whip, disqualification petition or party constitution.

OPTIONAL STATUS — This optional depth is unnecessary for a competent core answer; use it only for added nuance after the complete core has been written.